

MASTER SERVICE AGREEMENT

EXECUTED

Agreement #: MSA-2023-0142

Effective: January 15, 2023

Status: ACTIVE

This Master Service Agreement (the "**Agreement**") is entered into as of January 15, 2023 (the "Effective Date") by and between:

BrightPath Solutions Inc., a Delaware corporation ("BrightPath" or "Provider"), and
Acme Corporation, a California corporation ("Acme" or "Client").

Section 1 — Term

The initial term of this Agreement shall be two (2) years from the Effective Date, expiring on January 14, 2025, unless earlier terminated as provided herein. There is no automatic renewal; any extension requires a written amendment signed by both parties.

Section 2 — Services

BrightPath shall provide software development, system integration, and technical consulting services as described in individual Statements of Work (SOWs) executed under this Agreement.

Section 3 — Payment Terms

Client shall pay all undisputed invoices within thirty (30) days of the invoice date (Net 30). Late payments shall accrue interest at the rate of 1.5% per month.

Section 4 — Termination

Either party may terminate this Agreement without cause upon ninety (90) days prior written notice to the other party. Either party may terminate for cause if the other party materially breaches this Agreement and fails to cure such breach within thirty (30) days of written notice.

Section 5 — Confidentiality

Each party shall maintain the confidentiality of the other party's Confidential Information for a period of five (5) years following disclosure.

Section 6 — Indemnification

Each party (the "Indemnifying Party") shall indemnify, defend, and hold harmless the other party (the "Indemnified Party") from and against any third-party claims arising from: (a) the Indemnifying Party's breach of this Agreement; (b) the Indemnifying Party's negligence or willful misconduct; (c) any violation of applicable law by the Indemnifying Party. This indemnification is MUTUAL — both parties bear equal obligations.

Section 7 — Intellectual Property

Each party retains ownership of its pre-existing intellectual property. Work product created by BrightPath specifically for Client under an SOW shall be owned by Client upon full payment.

Section 8 — Data Protection

Both parties shall comply with all applicable data protection and privacy laws. In the event of a data breach involving the other party's data, the breaching party shall notify the affected party within thirty (30) days of discovery.

Section 9 — Limitation of Liability

EXCEPT FOR BREACHES OF CONFIDENTIALITY, INDEMNIFICATION OBLIGATIONS, AND WILLFUL MISCONDUCT, EACH PARTY'S AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED TWO MILLION DOLLARS (\$2,000,000) PER CONTRACT YEAR. NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES.

Section 10 — Insurance

Each party shall maintain commercially reasonable insurance coverage, including general liability, professional liability, and cyber liability insurance.

Section 11 — Force Majeure

Neither party shall be liable for delays or failures in performance resulting from events beyond its reasonable control.

Section 12 — Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles. Any dispute shall be resolved through binding arbitration in Wilmington, Delaware, administered by the American Arbitration Association.

Section 13 — Entire Agreement

This Agreement, including all SOWs and amendments, constitutes the entire agreement between the parties and supersedes all prior agreements and understandings.

BRIGHTPATH SOLUTIONS INC.

By: *Jennifer Walsh*, CEO | Date: January 15, 2023

ACME CORPORATION

By: *Thomas Chen*, VP of Technology | Date: January 15, 2023